

-

File No.: EXP202211104

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 23, 2022, a complaint was filed with entry registration number REGAGE22e00041776990 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint regarding unsolicited commercial calls to their mobile line ***TELEFONO.1 during the year 2022.

Along with the notification, the following documents are provided:

- Telephone bill to prove ownership of the receiving line.
- Copy of a deletion request sent via email on 31/07/2022.
- Recording of two phone calls (Audio 1 and Audio 2 are repeated):

On June 7, 2022, at 19:30 hours, from the calling line ***TELEFONO.2.

On September 19, 2022, at 17:35 hours, from the calling line ***TELEFONO.3.

- Copy of the new response received on June 8, 2022, informing that "it is not possible to generate such deletion, as the National Identity Document ***NIF.1 is not registered in your data files."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 24, 2022, as evidenced by the acknowledgment of receipt in the file.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

On November 28, 2022, a response was received by this Agency indicating:

"After conducting the necessary checks, we have verified that the complainant's telephone line, ***TELEFONO.1, is listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list."

"We have checked whether the calling numbers indicated in the information request are listed in our database with the telephone numbers used by our collaborators to make prospecting calls. To this end, we have verified that the numbers associated with our collaborators who make prospecting calls on behalf of Vodafone are not listed in our database. Therefore, it does not seem possible to relate the receipt of the calls mentioned by Ms. A.A.A. in her complaint with my represented party.

In any case, we want to highlight that, from Vodafone and as a consequence of the volume of complaints we have been receiving regarding commercial calls to potential customers, and upon verifying that in many cases, these calls have not been made as part of campaigns managed directly by Vodafone, we have implemented a corrective action plan specifically aimed at our collaborators and distributors who conduct customer acquisition campaigns to ensure that they scrupulously comply with the instructions provided by Vodafone when providing these services."

"..... currently Vodafone has stopped working with those entities that have repeatedly breached the contractual obligations established by Vodafone, as well as the legal provisions regarding data protection, and is in the process of selecting those collaborators who ensure full compliance with current regulations."

THIRD: On December 2, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was

admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering register on the website of the "Association of Operators for Portability," www.portanet.net, as evidenced in document "Diligence 1," it is verified that, as of

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/5

In the investigation of this file, the operators of the originating numbers of the calls were:

***PHONE.2

SINEASEN, S.L.

***PHONE.3 COLT TECHNOLOGY SERVICES, S.A.U.

***PHONE.4 XFERA MOVILES, S.A.U.

Regarding the claimed number ***PHONE.2:

-

From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

SINEASEN -> ORBITAL TELEFONÍA -> B.B.B. -> TANJATECH SERVICES (Morocco)

SINEASEN indicates that the call was not made through its platforms, but both ORBITAL and ORANGE (the claimant's operator) confirm the issuance and reception of it.

A request was sent by international certified mail to TANJATECH SERVICES, requesting the reason for the calls, to which no response has been received nor is there an acknowledgment of receipt.

Regarding the claimed number ***PHONE.3:

-

From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

COLT TECHNOLOGY SERVICES, S.A.U. -> GLOBTELECOM 2000, S.L. -> B.B.B. -> TANJATECH SERVICES (Morocco)

COLT TECHNOLOGY indicates that they found no calls on that date and time. ORANGE (the claimant's operator) confirms the reception of it.

GLOBTELECOM 2000, S.L. did not respond to the initial request (date GLOBTELECOM 2000, S.L. and registration number REGAGE23s00010561047) as it expired, nor did it respond to the reiteration of that request (date 22/03/2023 and registration number REGAGE23s00018736570) sent by postal mail with the result "Absent in delivery."

A request was sent by international certified mail to TANJATECH SERVICES, requesting the reason for the calls, to which no response has been received nor is there an acknowledgment of receipt.

Regarding the claimed number ***PHONE.4:

-

From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

XFERA MOVILES, S.A.U. -> C.C.C.

C/ Jorge Juan, 6
www.aepd.es

28001 – Madrid
sedeagpd.gob.es

4/5

XFERA indicates that they have no record of the call.

ORANGE (the claimant's operator) confirms the reception of it.

The AEAT was requested for the tax address of C.C.C., to which this Agency received the following response:

"....., according to the data in the Database of the State Agency for Tax Administration, it is communicated that the requested data could not be obtained with the information provided."

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Final provision six, section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/5

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that:

Regarding the numbers ***TELEFONO.2, ***TELEFONO.3, and ***TELEFONO.4, it cannot be concluded what the reason for the call was, as the final holder TANJATECH SERVICES, located in Morocco, did not respond to the request for information, making it impossible to determine that they are the final responsible party for the claimed call. Furthermore, it should be noted that this Agency does not have jurisdiction over companies located in the Kingdom of Morocco.

Regarding the number ***TELEFONO.4, it cannot be concluded what the reason for the call was; according to information provided by the telephone line operator, the final holder of the number is C.C.C., for which no data could be obtained for its location.

Thus, in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complaining party. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es